

June 15, 2026
Dept. 9
Probate Tentative Rulings

8.	25PR0283	ESTATE OF JACK PEFLEY
Accounting Hearing, Surcharge, Appointment of Trustee		

Petitioner Anthony Pefley (“petitioner”) alleges he is the successor trustee of the SAP Family Trust (the “Trust”). On March 5, 2026, he petitioned the Court to issue instructions, compel the return of trust property, impose double damages for bad-faith taking, order an accounting, and grant all equitable relief necessary.

The matter was continued from May 4, 2026, because petitioner had not submitted a copy of the Trust for the court’s review. Later on May 4, 2026, petitioner submitted a copy of the Trust. On May 7, 2026, petitioner submitted a copy of the original “short form” of the Trust, claiming that petitioner’s name does not appear as the successor trustee but it “should.” Petitioner also submitted a copy of the durable power of attorney for health care executed by Sally Pefley on July 9, 1997.

Proof of service filed March 6, 2026, shows the petition was served upon counsel for Yue Tang. In a letter to the court received January 20, 2026, counsel indicated that Ms. Tang is the trustee.

The copy of the Trust filed May 4, 2026, shows that the remainder beneficiaries include: (1) Shannan M. Pefley; (2) petitioner; (3) Jack Louis Pefley (Jr.); and (4) Donna Lee Pefley. To date, there is no proof of service of the instant petition on the other beneficiaries. There are only proofs of service filed March 10, 2026, for the document entitled, “Removal of Current Trustee,” upon Shannan Pefley and Jack Pefley.

TENTATIVE RULING #8: APPEARANCES ARE REQUIRED AT 8:30 A.M., MONDAY, JUNE 15, 2026, IN DEPARTMENT NINE, AT WHICH TIME THE COURT WILL INQUIRE PETITIONER REGARDING THE PARTIES TO THIS CASE AND SERVICE OF PROCESS.